

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/18/2024 6:44 PM

Entry Number
8,013

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Stephen Lowney

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

02/01/2024, 11/13/2023, 11/28/2023, 11/30/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 02/01/2024 suspected of bribery crook ("judicial officer") Stephen Lowney made theatrical show faking hearing:

Instead of hearing matter of reconsideration of financial fraud orders, obtained by fraud on court by unethical lawyer Nancy Robers with the help of his disqualified predecessor Andrea Flint, Lowney was telling fake stories about Flint moved to another court "on regular rotation" (how it represents court after about FOUR statements of disqualification against that disqualified crook from different litigants, many of which were concealed and not acted upon by Presiding Judge), tried to turn hearing into blah-blah-blah conversation, while prohibiting me to present evidence and equalizing calculation balance sheet, and in the end - punished me by ordering \$500 271 sanctions against me for requesting to reconsider financial fraud orders obtained by fraud on court.

The very approach of crook ("judicial officer") Lowney to prohibit evidentiary hearing, deny all admissible evidence, refuse to look at numbers in equalizing payment calculation sheet, and punishing me with financial sanctions - all that looks completely wrong.

I would remind that Lowney was winking and making suspicious gestures to Nancy Roberts all the January - and rescheduled all hearings from January, obviously waiting for something - most probably for bribe from Nancy.

On this hearing 02/01/2023 Lowney committed severe fraud on court - by refusing to reconsider financial fraud orders, and denying me even present numbers, which were falsified by Nancy Roberts, who was suspected in bribing his disqualified predecessor Andrea Flint (which led to her disqualification), and Lowney on his very first month of assignment in department 79.

Of course Lowney denied fraud on court 11/13/2023 and disqualification of Flint - but video evidence exists, and is attached in "Evidence for Complaint 2024-02-01 [Part 2 - Video recordings].pdf" for your attention - which confirms that Andrea Flint together with Nancy Roberts committed severe financial fraud on court on 11/13/2023 - including admitting falsified and irrelevant bank statements to evidence, and obtaining falsified fraud equalizing payment amount on the basis of falsified bank statements, through fraud on court, committed by Flint and Nancy Roberts. Please see video recordings and screenshots attached in evidence.

THE VERY FACT THAT PRESIDING JUDGE BETH MCGOWEN CONCEALED DISQUALIFICATION OF ANDREA FLINT, AND ALLOWED FAKE STORIES ABOUT HER "REGULAR ROTATION" TO CIRCULATE, WHY HARMFUL ORDERS OBTAINED BY FRAUD ON COURT ARE NOT NULLIFIED

YET - IS ABSOLUTELY IMPERMISSIBLE.

FINANCIAL FRAUD ORDERS, CUSTODY FRAUD ORDERS FACILITATING INTERNATIONAL CHILD ABDUCTION OUTSIDE OF THE UNITED STATES, MASSIVE AMOUNT OF FALSIFIED COURT ORDERS AND RECORDS, LEFT BY DISQUALIFIED SUSPECTED OF BRIBERY CROOK ANDREA FLINT, MUST BE NULLIFIED - AND DISQUALIFICATION TOGETHER WITH NULLIFICATION OF ALL ORDERS OF FLINT MUST BE OFFICIALLY CONFIRMED BY COURT.

I respectfully ask your help to provide official confirmation of DISQUALIFICATION OF ANDREA FLINT, AND NULLIFICATION OF ALL HER ORDERS RETROACTIVELY BACK TO 09/13/2022 - regardless of fraud committed by Beth McGowen in attempt to conceal disqualification of Flint.

Please review attached video evidence and statements of disqualification against Lowney, Flint and Nancy Roberts - who ultimately became officially organized criminal group in the Superior Court of Santa Clara County, committing massive repetitive crimes under color of law.

ALL HARMFUL FRAUD ORDERS OBTAINED BY FRAUD ON COURT COMMITTED BY DISQUALIFIED CROOK ("JUDICIAL OFFICER") ANDREA FLINT - MUST BE NULLIFIED RETROACTIVELY BACK TO 09/13/2022.

I respectfully ask your help to communicate to Presiding Judge Beth McGowen, or to the new Presiding Judge who will be assigned in the beginning of 2025, that issue of nullification of fraud orders obtained by repetitive fraud on court must be resolved by OFFICIAL CONFIRMATION OF DISQUALIFICATION OF ALL THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") FROM THIS CASE - STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY, - AND OFFICIAL CONFIRMATION THAT ALL HARMFUL ORDERS OF THESE THREE DISQUALIFIED CROOKS ARE NULLIFIED COMPLETELY RETROACTIVELY BACK TO 09/13/2022 (THE VERY BEGINNING OF THE CASE 22FL003144).

Appreciate your prompt attention to this urgent matter.
Thank you.

File Upload

Evidence for Complaint 2024-02-01 [Part 2 - Video recordings].pdf

2024-02-01 [ORDER] Lowney denied Reconsider fraud 2023-11-13 and sanctioned me \$500 for requesting reconsideration.pdf

2023-11-20 Reconsider Financial Fraud 2023-11-13.pdf

2023-11-13 Nancy Roberts committing financial fraud by admitting falsified irrelevant bank statement to evidence - time 36 min 57 sec.png

2023-11-13 Nancy Roberts committing fraud by falsifying bank statements and removing community expenses - time 35 min 13 sec.png

2023-11-20 Equalizing Payment Calculation Sheet for Reconsider Financial Fraud 2023-11-13 2nd Amended.pdf

2024-02-20 Disqualification against Lowney.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-06 Disqualification against Nancy Roberts.pdf

Judge 2

Name of judge

Andrea Flint

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County

Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

11/13/2023, 11/28/2023, 11/30/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 11/13/2023 Andrea Flint committed severe financial fraud on court - by granting financial fraud orders, based on falsified by Nancy Roberts bank statements.

This act of fraud on court was video recorded, and video evidence attached in "Evidence for Complaint 2024-02-01 [Flint and Beth McGowen]"

Flint was committing repetitive fraud on court during all 2023 - and was disqualified by TWO Statements of Disqualification: 11/13/2023 and 11/30/2023.

It appears that Presiding Judge Beth McGowen concealed fact of disqualification, refused to reply to Statement of Disqualification, did not provide any confirmation of disqualification, and did not provide any confirmation of nullification of multiple harmful orders obtained by fraud on court committed by disqualified crook ("judicial officer") Andrea Flint.

The very fact, that the next disqualified crook ("judicial officer") Stephen Lowney, while committing massive fraud on court on 02/01/2024 was shamelessly lying that Flint was not disqualified, and shared story that Flint was "rotated" to another court department (Juvenile Justice Courthouse) is absolutely impermissible.

Harmful fraud on court orders, left after disqualification of Flint, create lots of burden and issues - especially taking into account that the next disqualified crook ("judicial officer") Lowney refused to reconsider that fraud from Flint, and instead on 02/01/2024 punished me with 271 sanctions for

requesting reconsideration of financial fraud orders obtained by fraud on court of disqualified crook ("judicial officer") Andrea Flint.

It is absolutely impermissible that Presiding Judge Beth McGowen refused to act on Statements of Disqualification 11/13/2023 and 11/30/2023 against Andrea Flint, and instead "rotated" Flint - so that harmful crook continues occupy position in the court, and her orders continue to create burden and harmful basis for fabricated contempt, which disqualified crook ("judicial officer") Lowney is currently using to order arrests against me.

ALL HARMFUL FRAUD ORDERS OBTAINED BY FRAUD ON COURT COMMITTED BY DISQUALIFIED CROOK ("JUDICIAL OFFICER") ANDREA FLINT - MUST BE NULLIFIED RETROACTIVELY BACK TO 09/13/2022.

I respectfully ask your help to communicate to Presiding Judge Beth McGowen, or to the new Presiding Judge who will be assigned in the beginning of 2025, that issue of nullification of fraud orders obtained by repetitive fraud on court must be resolved by OFFICIAL CONFIRMATION OF DISQUALIFICATION OF ALL THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") FROM THIS CASE - STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY, - AND OFFICIAL CONFIRMATION THAT ALL HARMFUL ORDERS OF THESE THREE DISQUALIFIED CROOKS ARE NULLIFIED COMPLETELY RETROACTIVELY BACK TO 09/13/2022 (THE VERY BEGINNING OF THE CASE 22FL003144).

Appreciate your prompt attention to this urgent matter.

Thank you.

The very approach of crook ("judicial officer") Lowney to prohibit evidentiary hearing, deny all admissible evidence, refuse to look at numbers in equalizing payment calculation sheet, and punishing me with financial sanctions - all that looks completely wrong.

I would remind that Lowney was winking and making suspicious gestures to Nancy Roberts all the January - and rescheduled all hearings from January, obviously waiting for something - most probably for bribe from Nancy.

On this hearing 02/01/2023 Lowney committed severe fraud on court - by refusing to reconsider financial fraud orders, and denying me even present numbers, which were falsified by Nancy Roberts, who was suspected in bribing his disqualified predecessor Andrea Flint (which led to her disqualification), and Lowney on his very first month of assignment in department 79.

Of course Lowney denied fraud on court 11/13/2023 and disqualification of Flint - but video evidence exists, and is attached in "Evidence for Complaint 2024-02-01 [Part 2 - Video recordings].pdf" for your attention - which confirms that Andrea Flint together with Nancy Roberts committed severe financial fraud on court on 11/13/2023 - including admitting falsified and irrelevant bank statements to evidence, and obtaining falsified fraud equalizing payment amount on the basis of falsified bank statements, through fraud on court, committed by Flint and Nancy Roberts. Please see video recordings and screenshots attached in evidence.

THE VERY FACT THAT PRESIDING JUDGE BETH MCGOWEN CONCEALED DISQUALIFICATION OF ANDREA FLINT, AND ALLOWED FAKE STORIES ABOUT HER "REGULAR ROTATION" TO CIRCULATE, WHY HARMFUL ORDERS OBTAINED BY FRAUD ON COURT ARE NOT NULLIFIED YET - IS ABSOLUTELY IMPERMISSIBLE.

FINANCIAL FRAUD ORDERS, CUSTODY FRAUD ORDERS FACILITATING INTERNATIONAL CHILD ABDUCTION OUTSIDE OF THE UNITED STATES, MASSIVE AMOUNT OF FALSIFIED COURT ORDERS AND RECORDS, LEFT BY DISQUALIFIED SUSPECTED OF BRIBERY CROOK ANDREA FLINT, MUST BE NULLIFIED - AND DISQUALIFICATION TOGETHER WITH NULLIFICATION OF ALL

ORDERS OF FLINT MUST BE OFFICIALLY CONFIRMED BY COURT.

I respectfully ask your help to provide official confirmation of DISQUALIFICATION OF ANDREA FLINT, AND NULLIFICATION OF ALL HER ORDERS RETROACTIVELY BACK TO 09/13/2022 - regardless of attempt of Beth McGowen to conceal disqualification of Flint.

Please review attached video evidence and statements of disqualification against Lowney, Flint and Nancy Roberts - who ultimately became officially organized criminal group in the Superior Court of Santa Clara County, committing massive repetitive crimes under color of law.

I also kindly request Honorable Commission to help with NULLIFICATION OF ALL ORDERS OF DISQUALIFIED JUDGE FLINT.

ALL HARMFUL FRAUD ORDERS OBTAINED BY FRAUD ON COURT COMMITTED BY DISQUALIFIED CROOK ("JUDICIAL OFFICER") ANDREA FLINT - MUST BE NULLIFIED RETROACTIVELY BACK TO 09/13/2022.

I respectfully ask your help to communicate to Presiding Judge Beth McGowen, or to the new Presiding Judge who will be assigned in the beginning of 2025, that issue of nullification of fraud orders obtained by repetitive fraud on court must be resolved by OFFICIAL CONFIRMATION OF DISQUALIFICATION OF ALL THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") FROM THIS CASE - STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY, - AND OFFICIAL CONFIRMATION THAT ALL HARMFUL ORDERS OF THESE THREE DISQUALIFIED CROOKS ARE NULLIFIED COMPLETELY RETROACTIVELY BACK TO 09/13/2022 (THE VERY BEGINNING OF THE CASE 22FL003144).

Please see Statements of Disqualification 11/13/2023, 11/30/2023, Order Striking, and DVRO signed by disqualified judge Flint 11/28/2023, attached.

Appreciate your prompt attention to this urgent matter.
Thank you.

File Upload

Evidence for Complaint 2024-02-01 [Flint and Beth McGowen].pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

2023-12-15 Order Striking Recusal of Flint.pdf

2023-11-28 Hanna's DVRO for greeting Max with Birthday (printed).pdf

Judge 3

Name of judge

Beth McGowen

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County
Santa Clara

Type of court case
Other

Case name
Dissolution of Family Mars

Case number
22FL003144

Your relationship to the case
Litigant/Family/Friend

Date or dates conduct occurred
11/13/2023, 11/28/2023, 11/30/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 02/01/2024 suspected of bribery crook ("judicial officer") Stephen Lowney, while committing severe fraud on court, told me that disqualified suspected of bribery crook ("judicial officer") Andrea Flint was not disqualified, her harmful fraud orders obtained by fraud on court stand, and instead of nullification of her orders, she was "rotated" to Juvenile Justice Courthouse.

Taking into account that Flint was served TWO Statements of Disqualification (11/13/2023, 11/30/2023) - both of which were served to Presiding Judge Beth McGowen, the very fact that Beth McGowen concealed fact of disqualification, and did not provide neither official confirmation of disqualification, nor official confirmation of nullification of all orders of disqualified crook ("judicial officer") Andrea Flint - raises serious concerns about credibility of Presiding Judge Beth McGowen.

It is also highly concerning that disqualified crooks ("judicial officers") in Santa Clara County Superior Court are allowed by Presiding Judge to "Strike Statement of Disqualification" with the template for "Striking Motion to Recuse" - which is completely incorrect, and goes in violation of CCP 170.3, 170.4.

As required by the Law, disqualified judge has no judicial power to rule on any matters after Statement of Disqualification was filed, and matter of disqualification (if "stricken") must be heard by another judge, appointed by Judicial Council and Presiding Judge.

Instead, in Santa Clara County Superior Court, disqualified judge Andrea Flint was allowed to "rotate" without hearing - but even worse, DISQUALIFIED JUDGE ANDREA FLINT ON 11/28/2023, AFTER STATEMENT OF DISQUALIFICATION WAS FILED AND SERVED 11/13/2023, SIGNED A RESTRAINING ORDER AGAINST ME FOR ME GREETING MY SON MAX WITH BIRTHDAY, PROHIBITING ALL CONTACT WITH MY SON (WHO WAS BEATEN BY HIS MOTHER ON HIS BIRTHDAY, WHICH WAS VIDEO RECORDED) - WHICH LOOKS LIKE DISQUALIFIED JUDGES UNDER SUPERVISION OF BETH MCGOWEN ARE ALLOWED TO STAY AND RETALIATE TO LITIGANTS WHO FILED STATEMENT OF DISQUALIFICATION AGAINST THEM.

SUCH POLICY ALLOWING DISQUALIFIED JUDGES TO SEVERELY RETALIATE EVEN AFTER DISQUALIFICATION, AND TO AVOID DUE PROCESS OF DISQUALIFICATION, IS ABSOLUTELY IMPERMISSIBLE AND UNLAWFUL.

I kindly request Honorable Commission on Judicial Performance and Chief Justice to immediately investigate why Presiding Judge Beth McGowen concealed fact of disqualification of disqualified crook ("judicial officer") Andrea Flint, why Presiding Judge allowed disqualified judge Flint to continue signing orders while not having judicial power after disqualification process started, and why Presiding Judge refused to act on disqualification as it is required by CCP 170.3 and CCP 170.4: transfer case to another judge, officially confirm disqualification, officially confirm nullification of all orders of disqualified judge as it was requested in Statement of Disqualification (11/13/2023, 11/30/2023)

I also kindly request Honorable Commission to help with NULLIFICATION OF ALL ORDERS OF DISQUALIFIED JUDGE FLINT.

ALL HARMFUL FRAUD ORDERS OBTAINED BY FRAUD ON COURT COMMITTED BY DISQUALIFIED CROOK ("JUDICIAL OFFICER") ANDREA FLINT - MUST BE NULLIFIED RETROACTIVELY BACK TO 09/13/2022.

I respectfully ask your help to communicate to Presiding Judge Beth McGowen, or to the new Presiding Judge who will be assigned in the beginning of 2025, that issue of nullification of fraud orders obtained by repetitive fraud on court must be resolved by OFFICIAL CONFIRMATION OF DISQUALIFICATION OF ALL THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") FROM THIS CASE - STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY, - AND OFFICIAL CONFIRMATION THAT ALL HARMFUL ORDERS OF THESE THREE DISQUALIFIED CROOKS ARE NULLIFIED COMPLETELY RETROACTIVELY BACK TO 09/13/2022 (THE VERY BEGINNING OF THE CASE 22FL003144).

Please see Statements of Disqualification 11/13/2023, 11/30/2023, Order Striking, and DVRO signed by disqualified judge Flint 11/28/2023, attached.

Appreciate your prompt attention to this urgent matter.
Thank you.

File Upload

Evidence for Complaint 2024-02-01 [Flint and Beth McGowen].pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

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2023-11-28 Hanna's DVRO for greeting Max with Birthday (printed).pdf